



**PARLIAMENT OF THE DEMOCRATIC  
SOCIALIST REPUBLIC OF  
SRI LANKA**

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**SUWASETHA SOCIAL SERVICE ASSOCIATION  
(INCORPORATION) ACT, No. 58 OF 2000**

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**[Certified on 18th August, 2000]**

*Printed on the Order of Government*

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*Suvasetha Social Service Association  
(Incorporation) Act, No. 58 of 2000*

[Certified on 18th August , 2000]

L. D. — O. 40/99.

AN ACT TO INCORPORATE THE SUVASETHA SOCIAL SERVICE  
ASSOCIATION

WHEREAS an Association called and known as the Suvasetha Social Service Association has heretofore been formed at Kesbewa in Sri Lanka for the purpose of effectually carrying out and transacting all objects and matters connected with the said Association according to the rules agreed to by its members:

Preamble.

AND WHEREAS the said Association has heretofore successfully carried out and transacted the several objects and matters for which it was formed, and has applied to be incorporated and it will be for the public advantage to grant the application:

BE it therefore enacted by the Parliament of the Democratic Socialist Republic of Sri Lanka as follows:—

1. This Act may be cited as the Suvasetha Social Service Association (Incorporation) Act, No. 58 of 2000.

Short Title.

2. From and after the date of commencement of this Act, such and so many persons as now are members of the Suvasetha Social Service Association (hereinafter referred to as “the Association”) or shall hereafter be admitted members of the Corporation hereby constituted, shall be a body Corporate (hereinafter referred to as “the Corporation”) with perpetual succession under the name and style of the “Suvasetha Social Service Association”, and by that name may sue and be sued in all courts, with full power and authority to have, and use a common seal and alter the same at its pleasure.

Incorporation of the Suvasetha Social Service Association.

3. The general objects for which the Corporation is constituted are hereby declared to be—

General Objects of the Corporation.

- (a) to construct a home for the elders to be called “the Jayawardena Home for the elders” and to manage and maintain same ;

- (b) to provide welfare facilities for the deaf and blind, the disabled and the destitutes ;
- (c) to promote, and engage in the implementation of, community welfare, educational, and social development projects in Sri Lanka ;
- (d) to promote cultural activities and to assist the Archaeological Department to conserve ancient buildings and monuments and works of art ;
- (e) to promote mutual understanding and co-operation among people, irrespective of race and religion ;
- (f) to provide bursaries, scholarships, prizes, donations, financial aid and assistance for the promotion of education and the advancement, dissemination and propagation of knowledge ;
- (g) to engage in any industry or trade or in any export or import business and to aid and assist persons to commence and operate agricultural, industrial and commercial ventures and to undertake training programmes and extension services and to organise propaganda activities, relating to the transfer of technology ;
- (h) to establish and maintain projects for the protection, management and conservation of the environment ;
- (i) to collaborate or liase with any other institution or organisation, whether foreign or local, having objects similar to those of the Corporation ;
- (j) to sponsor and conduct conferences, seminars, workshops, group studies and lectures in Sri Lanka and elsewhere, in furtherance of the objects of the Corporation ;
- (k) to formulate and implement schemes for cottage industries and self employment ;

(l) to print, publish and distribute books, journals, leaflets, newspapers and magazines which the Corporation may consider desirable for the promotion and advancement of its objects ; and

(m) to do such other acts and things as may be necessary, incidental or conducive to the accomplishment of all or any of the objects of the Corporation.

4. (1) The affairs of the Corporation shall, subject to the rules in force for the time being of the Corporation be administered by a Board of Management (hereinafter referred to as "the Board") consisting of such number of members as may be provided in such rules and elected in accordance therewith.

Management  
of the affairs  
of the  
Corporation.

(2) The first Board of Management of the Corporation shall consist of the members of the Board of Management of the Association holding office on the day immediately preceding the date of commencement of this Act.

5. (1) There shall be a Board of Trustees who shall be entrusted with the Management of "the Jayawardena Home for Elders" and the trust property.

Board of Trustees.

(2) Trust property shall not be alienated or otherwise disposed of without the approval of the Board of Trustees.

(3) The first Board of Trustees of the Corporation shall consist of the Board of Trustees of the Association holding office on the day immediately preceding the date of commencement of this Act and whose names are specified in the Schedule hereto.

6. The trust property shall be used only for the establishment and maintenance of a home for the elders and for educational and social welfare activities.

Trust property to  
be used only for  
the purposes  
specified in the  
trust deed.

Register of  
members.

7. The Board shall cause to be kept a register of members in which every person who on the day immediately preceding the date of commencement of this Act was a member of the Association and every person thereafter duly admitted as a member of the Corporation shall have his name inscribed.

General Powers of  
the Corporation.

8. Subject to the provisions of this Act, and any other written law, the Corporation shall have the power —

- (a) to purchase, rent, lease or otherwise acquire lands or buildings which may be required for the purposes of the Corporation ;
- (b) to borrow or raise money with or without interest for the purposes of the Corporation ;
- (c) to make, draw, accept, discount, endorse, negotiate, buy, sell and issue, bills of exchange, cheques, promissory notes and other negotiable instruments and to open, operate and close, bank accounts ;
- (d) to invest any funds not immediately required for the purposes of the Corporation in such manner as the Board may think fit;
- (e) to solicit and receive subscriptions, grants, donations, and gifts of all kinds ;
- (f) to enter into agreements or contracts with any person, company or body of persons as may be necessary for carrying out its objects ;
- (g) to undertake, accept, execute, perform and administer any lawful trusts and conditions affecting any movable or immovable property ;
- (h) to appoint employ and dismiss, officers and servants of the Corporation, and to pay them such salaries, allowances and gratuities as may be determined by the Corporation ; and
- (i) to do all other acts and things as may be necessary or expedient for the proper and effective carrying out of the objects of the Corporation.

9. (1) It shall be lawful for the Corporation, from time to time, at any general meeting and by a majority of not less than two-thirds of the members present and voting, to make rules not inconsistent with the provisions of this Act or any other written law for all or any of the following matters :—

- (a) classification of membership, fees payable by each class of member, their admission, withdrawal, expulsion or resignation ;
- (b) election of the Board, the resignation or vacation of, or removal from office of, members of the Board and their duties and conduct ;
- (c) appointment, employment, and dismissal of various officers, agents and servants of the Corporation, their powers, duties, functions and conduct and the payment of remuneration to them ;
- (d) the procedure to be observed at, and the summoning and holding of, meetings of the Board, the Corporation or any sub-committee thereof, filling of vacancies, notices and agenda of such meetings, the quorum therefor and the conduct of business thereat;
- (e) the qualifications and disqualifications for membership in the Board and the Corporation ;
- (f) the administration and management of the property of the Corporation ; and
- (g) generally, for the management of the affairs of the Corporation and the accomplishment of its objects.

(2) The rules of the Association in force on the day immediately preceding the date of commencement of this Act shall, in so far as they are not inconsistent with the provisions of this Act or other written law, be deemed to be the rules of the Corporation and may be amended, altered, added to, or rescinded at a like meeting and in like manner as a rule made under subsection (1) of this section.

(3) The members of the Corporation shall be subject to the rules of the Corporation.

Fund of the  
Corporation.

10. (1) The Corporation shall have its own fund and all moneys received by way of gift, bequest, donation, subscription, contribution, fees or grants for and on account of the Corporation shall be deposited to the credit of the Corporation in one or more banks as the Board shall determine.

(2) There shall be paid out of the fund all sums of money to defray any expenditure incurred by the Corporation in the exercise, performance and discharge of its powers, duties and functions under this Act.

Audit and  
accounts.

11. (1) The Board shall cause proper accounts to be kept of all the moneys received and expended by the Corporation.

(2) The accounts of the Corporation shall be examined and audited at least once in every year, and the correctness of the income and expenditure, account and the balance sheet, certified by an auditor or auditors who are associate members of the Institute of Chartered Accountants of Sri Lanka appointed by the Board.

Debts due by and  
payable to the  
Association.

12. All debts and liabilities of the Association existing on the day preceding the date of commencement of this Act shall be paid and discharged by the Corporation and all debts due to, and subscriptions and contributions payable to the Association on that day shall be paid to the Corporation for the purposes of this Act.

Corporation may  
hold property  
movable and  
immovable.

13. The Corporation shall be able and capable in law to acquire and hold any property, movable or immovable, which may become vested in it by virtue of any purchase, grant, gift, testamentary disposition or otherwise, and all such property shall be held by the Corporation for the purposes of this Act, and subject to the rules in force for the time being of the Corporation, and it shall have full power to sell, mortgage, lease, exchange or otherwise dispose of, the same.

14. The seal of the Corporation shall not be affixed to any instrument whatsoever except in the presence of the Chairman of the Board and the Secretary or such other person duly authorised by the Board who shall sign their names to the instrument in token of their presence, and such signing shall be independent of the signing of any person as a witness.

Seal of the Corporation.

15. If upon the dissolution of the Corporation there remains after the satisfaction of all its debts and liabilities any property whatsoever, such property shall not be distributed among the members of the Corporation but shall be given or transferred to some other institution of institutions having objects similar to those of the Corporation and which is or are by the rules prohibited from distributing any income or property among its or their members. Such institution shall be determined by the members of the Corporation at, or immediately before, the time of dissolution of the Corporation.

Property remaining on dissolution.

16. Nothing in this Act contained shall prejudice or affect the rights of the Republic, or any body politic or corporate, or of any other persons except such as are mentioned in this Act, and those claiming by, from, or under, them.

Savings of the rights of the Republic and others.

17. In the event of any inconsistency between the Sinhala and the Tamil texts of this Act, the Sinhala text shall prevail.

Sinhala text to prevail in case of inconsistency.

## SCHEDULE

[Section 5 (3)]

### *Board of Trustees*

1. Mr. Hettiarachchige Don Jayawardena - Managing Trustee
2. Mr. Chandradasa Jayasinghe - Secretary
3. Mrs. Dona Lissinona Gamage - Trustee
4. Mrs. Muditha Hettiarachchi - Trustee
5. Mrs. Anula Jananandanie Hettiarachchi - Trustee



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